did not. As David Cole, a law professor, wrote in a recent *New York Review of Books* article,

> … the meta-data programme was blessed by all three branches. The Bush administration instituted it and Obama maintained it. Fifteen federal judges on the FISA court declared it lawful. And Congress reauthorised the Patriot Act provision upon which the programme was based.[39]

Imagine the following questions being posed in early June 2013: 'Does the NSA have the ability to read an e-mail if it really wants to? Does it have means to get round commercially available encryption? Does it cooperate with other intelligence agencies? Does it have the means to tap into international fibre-optic cables? Does it store electronic information in order to search it later if necessary? Were these capabilities envisaged at the time the relevant laws were drafted?' To all these questions the honest answer would have been 'yes'.[40]

What Snowden has done is give a level of detail confirming these suppositions, coupled with, from his allies, a level of spin that verges on the hysterical, and doses of accidental or deliberate misinterpretation (as in the case of allegations that millions of telephone calls in Norway had been intercepted by the NSA).[41]

A more sensible question concerns not the capabilities but how they are exercised. Is it really worth spying on Angela Merkel's phone? Is the risk of the collection proportionate to the gain? These are hard questions for spy chiefs and their political masters. (The administration has now indicated that it will stop snooping on friendly foreign leaders' communications.) But to portray the NSA and its partner services, as Greenwald does, as akin to East Germany's Stasi, or to the KGB, and claiming that they have the 'literal' goal to 'eliminate privacy globally'[42] is an extraordinary claim,